

BILATERAL FOUNDER CAPITAL ADVANCE & MERCHANDISE YIELD AGREEMENT



STRICTLY CONFIDENTIAL • LEGAL & FINANCIAL GOVERNANCE DOCUMENT

Capital Lender / Co-Founder & CTO: Sayan Bhattacharya	Procurement Partner / Co-Founder & CGO: Rajrup
Initial Personal Advance: ₹50,000 INR (Disbursed)	Guaranteed Senior Repayment: ₹1,50,000 INR (3.0x Fixed Yield)
Target Asset Class: Authenticated Memorabilia (Virat Kohli 49th Century COA Items)	Repayment Priority: First-Draw Senior Debt (Pre-Dividend & Pre-Profit)

1. RECITALS & PURPOSE OF AGREEMENT

This Bilateral Agreement ("Agreement") is entered into as of **August 20, 2026**, by and between **Sayan Bhattacharya** ("Lender / CTO") and **Rajrup** ("Procurement Partner / CGO") regarding the venture **SPORT IQ Technologies**.

WHEREAS, Sayan Bhattacharya has personally disbursed an initial capital advance of **₹50,000 INR** out of personal funds to Rajrup for the exclusive purpose of securing, framing, and certifying high-value sports memorabilia and merchandise assets—specifically including authenticated Virat Kohli 49th ODI Century commemorative items and official sports collectibles; and

WHEREAS, both Co-Founders agree to establish strict, binding financial boundaries from Day 1 to ring-fence personal capital, guarantee Sayan's 3.0x return (**₹1,50,000 INR**), and ensure Rajrup's commercial and public/political activities remain 100% compliant, transparent, and separate from company equity dividends.

2. CAPITAL ADVANCE & FIXED RETURN TERMS

FINANCIAL PARAMETER	TERMS & STIPULATIONS	AMOUNT (INR)
Sayan's Initial Out-of-Pocket Advance	Direct personal cash/bank transfer for merchandise procurement & COA framing.	₹50,000
Guaranteed Return Multiplier	Fixed 3.0x yield reflecting early inventory risk & capital cost.	3.0x Multiplier
TOTAL GUARANTEED SENIOR PAYOUT TO SAYAN	First-Draw Senior Debt Repayment (Pre-Equity Dividend)	₹1,50,000

3. REVENUE REPAYMENT WATERFALL & PRIORITY

To ensure Sayan recovers his ₹1,50,000 payout promptly without interfering with core pre-seed angel capital (₹3.0L–4.0L / ₹9.0L), the payout shall be serviced through a dedicated **First-Draw Revenue Waterfall**:

- Primary Repayment Stream (100% Allocation):** 100% of gross profits generated from *Stream 4: Affiliate Sports Merch & Authenticated Memorabilia Sales* shall be directly remitted to Sayan Bhattacharya until the cumulative payout of ₹1,50,000 INR is reached.
- Secondary Repayment Stream (15% Setup Allocation):** 15% of all initial B2B API syndication setup fees (Stream 1) shall serve as a secondary repayment backstop if merchandise sales lag.
- Senior Debt Status:** Sayan's ₹1,50,000 repayment is classified as a **Pre-Tax Senior Inventory Loan**. It takes strict legal priority over co-founder profit draws, equity distributions, or angel investor dividend payouts.

PROTECTION FOR PRE-SEED ANGEL INVESTORS

Angel investors contributing to the ₹3.0L–4.0L / ₹9.0L pre-seed round are informed that Sayan's ₹50,000 advance is a pre-existing inventory loan serviced exclusively by dedicated merchandise margins and B2B setup fees. Zero investor equity capital is diverted to service this personal advance.

4. INVENTORY SECURITY, IP & CUSTODY LIEN

- **Lien on Inventory:** Sayan Bhattacharya retains a primary security lien on all physical merchandise assets, certificates of authenticity (COA), and digital twin NFTs/cards until the full ₹1,50,000 payout is completed.
- **Rajrup's Custody & Accountability:** Rajrup agrees to hold all merchandise in secure custody, maintain itemized sales ledgers, and provide weekly written updates on buyer inquiries, authentication status, and revenue receipts.
- **No Commingling of Funds:** Rajrup explicitly agrees that no personal, political, or third-party funds shall be commingled with SPORT IQ merchandise revenue accounts.

5. INDEPENDENCE FROM CORE CAP TABLE & VESTING

This Agreement operates independently of the core SPORT IQ cap table. Both Co-Founders reaffirm their commitment to the primary venture equity split:

- **Sayan Bhattacharya (CTO):** 41.5% Equity Stake (4-year vesting, 1-year cliff, 100% IP assignment).
- **Rajrup (CGO):** 41.5% Equity Stake (4-year vesting, 1-year cliff).
- **ESOP Pool:** 8.0% | **Pre-Seed Angel Investors:** 9.0% (3.0% per ₹3L ticket).

Settlement or default under this Merchandise Advance Agreement shall not alter Sayan's 41.5% co-founder equity stake or CTO leadership mandate.

6. BINDING LEGAL EXECUTION

This Agreement constitutes a legally binding obligation under the Indian Contract Act, 1872. Any disputes shall be resolved through amicable bilateral discussion or binding arbitration in Kolkata, West Bengal.

Sayan Bhattacharya Capital Lender / Co-Founder & CTO Date: August 20, 2026	Rajrup Procurement Partner / Co-Founder & CGO Date: August 20, 2026
---	--